

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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XAVIER SIMPSON,

Plaintiff,

vs.

07 Civ. 0016 (CBA)(RML)

**AMENDED
COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER
OMAR CASTILLO, shield no. 29301, SERGEANT
HOLOCHUCK, P.O. MICHAEL EDMONDS, shield
no. 04823, P.O. JOSEPH DURANTE, shield
no. 23084 and POLICE OFFICERS JOHN DOE
AND RICHARD ROE (names and number of whom are
unknown at present), and other unidentified members of
the New York City Police Department

Defendants

**JURY TRIAL
DEMANDED**

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PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. Plaintiff while walking through his neighborhood on the way to visit a friend was approached by plainclothes police officers who proceeded to push, beat, kick, and punch plaintiff and in so doing broke his wrist and fractured his elbow. Plaintiff was deprived of his constitutional and common law rights when the individual defendants utilized excessive force, committed an unwarranted and malicious assault and battery on plaintiff, unlawfully confined

plaintiff, engaged in unconstitutional strip and body cavity searches of plaintiff, and caused the unjustifiable arrest and prosecution of plaintiff.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343 (3) and (4) and the aforementioned statutory and constitutional provisions.

3. The plaintiff further invokes this Court's supplemental jurisdiction, pursuant to 28 U.S.C. §1367, over any and all State law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy that give rise to the federally based claims and causes of action.

VENUE

4. Venue is proper for the United States District Court for the Eastern District of New York pursuant to 28 U.S.C. § 1391, (a), (b) and (c) and § 1402 (b) because the claims arose in this district and plaintiff resides in this district.

PARTIES

5. Plaintiff Xavier Simpson is a resident of the County of Queens, State of New York.

6. New York City Police Officer Omar Castillo, shield number 29301, Sergeant Holochuck, Police Officers Michael Edmonds and Joseph Durante are and were at all times relevant

herein officers, employees, and agents of the New York City Police Department. On the date of the incident, June 8, 2006, they were assigned to the 105th Precinct. Police Officer Castillo, Edmonds, Durante and Sergeant Holochuck are being sued herein in their individual capacity and official capacity.

7. New York City Police Officer John Doe and Richard Roe are and were at all times relevant herein officers, employees, and agents of the New York City Police Department. On the date of the incident Officer John Doe and Richard Roe were assigned to the 105th Precinct. Officers John Doe and Richard Roe are being sued herein in their individual capacity and official capacity.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

STATEMENT OF FACTS

10. On June 8, 2006, plaintiff walked from his home to the vicinity of 221st Street and Murdock Avenue in the county of Queens to visit a friend.

11. As he was walking across the street, police officers sitting in an unmarked police car called him over.

12. Plaintiff walked over to the officers including defendant Castillo, Holochuck, Edmonds and Durante.

13. The officers asked plaintiff his name and he told them.

14. The officers asked plaintiff where he was going and he told them.

15. Plaintiff was fully cooperative with the police during their questioning of him.

16. Apparently not satisfied with the answers they were getting from plaintiff the defendants exited their vehicle and grabbed plaintiff.

17. One of the officers grabbed plaintiff by the arm and another grabbed him around the neck..

18. Plaintiff was thrown to the ground where he was repeatedly struck and kicked by the defendant officers.

19. At no time did plaintiff offer any resistance nor did he any way provoke the assault.

20. Plaintiff was then picked up off the ground and searched by the defendant officers.

21. No weapons or contraband was found on plaintiff.

22. Plaintiff was handcuffed and placed in a patrol car and taken to the 105th Precinct.

23. At the precinct, plaintiff was placed in a cell and defendant Castillo and an unidentified defendant conducted a strip search and body cavity search of plaintiff.

24. Nothing was recovered.

25. Shortly after the first strip and body cavity search, defendant Holochuck, Castillo, and an unidentified officer came back into plaintiff's cell and conducted a second strip search and body cavity search.

26. Again nothing was recovered.

27. While at the precinct plaintiff told the defendant officers that he was in pain but they ignored his complaints.

28. Plaintiff received medical attention only after his mother who works in law enforcement arrived at the precinct and used her cell phone to call EMS.

29. After the arrival of EMS plaintiff was transported to Queens General Hospital.

30. After treatment at Queens General Hospital, plaintiff was transported to Central Booking where it was determined that he needed additional medical treatment.

31. Plaintiff was taken from Central Booking and brought back to Queens General Hospital.

32. After his second hospital visit plaintiff was brought to arraignment.

33. At his arraignment plaintiff was charged with Resisting Arrest and Disorderly Conduct.

34. After his release from jail plaintiff went to a doctor where it was determined that his wrist had been broken and his elbow had been fractured.

35. On October 16, 2006, after conducting a thorough investigation during which plaintiff met with prosecutors from the Queens District Attorney's Office, the District Attorney dismissed the charges against plaintiff.

36. The assault on plaintiff by defendants was far in excess of their rightful authority as New York City police officers. This assault on plaintiff was made without proper cause.

37. The assault, malicious prosecution, unconstitutional strip and body cavity searches, false imprisonment, and false arrest upon plaintiff by defendants Castillo, Holochuck, Edmonds and Durante and John Doe and Richard Roe caused plaintiff to sustain physical pain and suffering and psychological and emotional trauma.

38. A notice of claim was served on the Comptroller of the City of New York and at least thirty days have elapsed since the service of such notice and adjustment and/or payment has been neglected and/or refused.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and

Fourteenth Amendment Rights

39. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. Defendants Castillo, Holochuck, Edmonds and Durante and John Doe and Richard Roe who were acting in concert and within the scope of their authority, arrested and caused plaintiff to be imprisoned without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment Rights

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The use of excessive force by defendants Castillo, Holochuck, Edmonds and Durante and John Doe and Richard Roe , all acting in concert, in punching, hitting, and kicking plaintiff was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth Amendment to the United States Constitution.

THIRD CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment Rights

Strip Searches and Body Cavity Searches

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The strip searches and body cavity searches of plaintiff by defendants who were acting in concert and within the scope of their authority was an objectively unreasonable search and seizure of plaintiff in violation of his right to be free of an unreasonable search and seizure under the Fourth Amendment to the Constitution of the United States.

FOURTH CAUSE OF ACTION

Assault

45. The plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such act(s) caused apprehension of such contact in the plaintiff.

47. Defendants Castillo, Holochuck, Edmonds and Durante and John Doe and Richard Roe were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

FIFTH CAUSE OF ACTION

Battery

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck and strip searched plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

51. Defendants Castillo, Holochuck, Edmonds, and Durante and John Doe and Richard Roe were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

SIXTH CAUSE OF ACTION

False Arrest

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

55. Defendants Castillo, Holochuck, Edmonds, and Durante and John Doe and Richard Roe were at all times agents, servants, and employees acting within the scope of their

employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

SEVENTH CAUSE OF ACTION

Malicious Prosecution

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and under the Fourth Amendment to the United States Constitution. Defendants commenced and continued a criminal proceeding against plaintiff. There was actual malice and an absence of probable cause for the proceeding. In addition, the proceeding terminated favorably to plaintiff.

59. Defendants Castillo, Holochuck, Edmonds, and Durante and John Doe and Richard Roe were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims and pursuant to the Fourth Amendment of the United States Constitution this Court has jurisdiction to hear the federally based claim.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants Castillo, Holochuck, Edmonds, and Durante and John Doe and Richard Roe individuals who were unfit for the performance of police duties on June 8, 2006, at the aforementioned location.

63. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

JURY DEMAND

64. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff prays for relief as follows:

That the jury find and the Court adjudge and decree that plaintiff Xavier Simpson shall recover compensatory damages in the sum of \$5,000,000 against the individual defendants and the City of New York, jointly and severally, together with interest and costs; and punitive damages in the sum of \$5,000,000 against the individual defendants, jointly and severally.

a. That the plaintiff recover the cost of the suit herein, including reasonable

attorneys fees pursuant to 42 U.S.C. §1988.

b. That the plaintiff have such other and further relief as the Court shall deem just and proper.

DATED: October 19, 2007
New York, New York

A handwritten signature in black ink, appearing to read 'Earl S. Ward', written over a horizontal line.

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